

## 25STCV25005 25STCV25005

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-24

Source URL:

[https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=LAM%2C617%2C08%2F24%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C08%2F24%2F2026)

Source SHA-256: d7229317f51c9200f5d3b0c2dae951c8599ec8fb693947dbc761e81077deb6d8

Case Number: 25STCV25005 Hearing Date: August 24, 2026 Dept: 617

Dept.

617

Date:

8-24-26

Case

#: 25STCV25005

Trial

Date: None Set

DEMURRER WITH MOTION TO STRIKE

MOVING

PARTY: Defendants, Matthew D. Rifat and Law Offices of Matthew D. Rifat, APC

RESPONDING

PARTY: Plaintiff, California Company, LLC

RELIEF

REQUESTED

Demurrer

to Complaint

Motion

to Strike

## SUMMARY OF ACTION

### Plaintiff

California Company, LLC retained Defendants Matthew D. Rifat and Law Offices of Matthew D. Rifat, APC to represent it in a lawsuit. Plaintiff alleges that on August 21, 2018, Defendants moved to withdraw as counsel in the underlying action without notifying Plaintiff and serving a “bogus” notice of motion to a P.O. Box that Plaintiff had not used since 2017. Defendants never apprised Plaintiff’s main point of contact, Munir Uwaydah, of its motion despite allegedly being “in almost daily communication in August of 2018.” The unopposed withdrawal was granted on September 21, 2018.

### On

November 9, 2018, the Court gave Plaintiff until December 6, 2018 to obtain new counsel. When Plaintiff failed to do so, the case was dismissed. Plaintiff alleges that it only found out about Defendants’ actions and the resulting dismissal in September 2024 when reviewing the case docket. On August 25, 2025, Plaintiff filed the instant action asserting claims for professional negligence and breach of fiduciary duty.

## RULING

### Request

for Judicial Notice: Denied.

### The

Court does not take judicial notice of the requested documents as they are immaterial to the Court’s ruling.

Demurrer: Sustained.

### Defendants

demur to Plaintiff’s complaint arguing that Plaintiff’s claims are time-barred under Code of Civil Procedure section 340.6’s statute of repose. Plaintiff opposes the demurrer, denying its claims are untimely. Defendants’ demurrer is sustained with leave to amend.

A

demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading “by raising questions of law.” (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) “In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.” (Code Civ. Proc., § 452.) The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . .” (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.) “If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

#### Defendants

argue that Plaintiff’s claims are time-barred under Code of Civil Procedure section 340.6’s statute of repose. Under that provision, “[a]n action against an attorney for a wrongful act or omission, other than for actual fraud, arising in the performance of professional services shall be commenced within one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the facts constituting the wrongful act or omission, or four years from the date of the wrongful act or omission, whichever occurs first.” (Code Civ. Proc., § 340.6, subd. (a).) “[T]he statute of limitations for legal malpractice actions commences on entry of adverse judgment or final order of dismissal.” (*Laird v. Blacker* (1992) 2 Cal.4th 606, 615.)

#### Plaintiff’s

claims are barred by the statute of repose. The claims arise out of Defendants’ performance of professional services because they involve Defendants’ alleged failure to notify Plaintiff of the withdrawal and essentially abandoning Plaintiff during the pendency of the litigation. [Compl. ¶¶ 17-34.] The claims began to accrue when the Court dismissed Plaintiff’s action on December 6, 2018. The claims needed to be brought 4 years later on December 6, 2022. This

is true even if Plaintiff only discovered the alleged wrongful conduct in September 2024; the earlier date is controlling. Because there is a reasonable possibility that Plaintiff can amend its complaint to allege tolling of the repose period due to willful concealment of the alleged misconduct (Code Civ. Proc., § 340.6, subd. (a)(3)), the demurrer is sustained with leave to amend.

Motion  
to Strike:  
Moot.

Plaintiff  
is granted 30 days' leave to amend. Plaintiff may only add facts in support of the successfully challenged claims. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff declines or fails to file an amended complaint, Defendants may move for dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) Any new causes of action outside the scope of the order may be addressed via a motion to strike.

Defendants  
to give notice.

Dept.  
617

Date:  
8-24-26

Case  
#: 25STCV25005

Trial  
Date: None Set

SANCTIONS

MOVING  
PARTY: Defendants, Matthew D. Rifat and Law Offices of Matthew D. Rifat, APC

RESPONDING  
PARTY: Plaintiff, California Company, LLC

RELIEF  
REQUESTED

Motion  
for Sanctions

SUMMARY  
OF ACTION

Plaintiff

California Company, LLC retained Defendants Matthew D. Rifat and Law Offices of Matthew D. Rifat, APC to represent it in a lawsuit. Plaintiff alleges that on August 21, 2018, Defendants moved to withdraw as counsel in the underlying action without notifying Plaintiff and serving a “bogus” notice of motion to a P.O. Box that Plaintiff had not used since 2017. Defendants never apprised Plaintiff’s main point of contact, Munir Uwaydah, of its motion despite allegedly being “in almost daily communication in August of 2018.” The unopposed withdrawal was granted on September 21, 2018.

On

November 9, 2018, the Court gave Plaintiff until December 6, 2018 to obtain new counsel. When Plaintiff failed to do so, the case was dismissed. Plaintiff alleges that it only found out about Defendants’ actions and the resulting dismissal in September 2024 when reviewing the case docket. On August 25, 2025, Plaintiff filed the instant action asserting claims for professional negligence and breach of fiduciary duty.

RULING: Denied.

Request for Judicial Notice:  
Denied.

The Court does not take judicial notice of the requested documents because they are irrelevant to disposition of the motion.

Defendants

move for an order imposing sanctions against Plaintiff and its counsel of record under Code of Civil Procedure section 128.7 in the amount of \$33,055.

They argue that the complaint is presented for an improper purpose because it is facially barred by the statute of limitations and its factual allegations lack evidentiary support. Plaintiff opposes the motion, contending that its claims are supported by the law and sworn declarations. Defendants' motion is denied.

Code

of Civil Procedure section 128.7 requires that an attorney sign all pleadings, petitions, notices of motions, and other similar papers. (Code Civ. Proc., § 128.7, subd. (a).) Thus, by presenting a pleading or other similar paper to the court, an attorney is certifying that to the best of his or her knowledge, information, and belief, "formed after an inquiry reasonable under the circumstances," all of the following conditions are met:

(1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation.

(2)

The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law.

(3)

The allegations and other factual contentions have evidentiary support or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery.

(4)

The denials of factual contentions are warranted on the evidence or, if specifically so identified, are reasonably based on a lack of information or belief.

(Code

Civ. Proc., § 128.7, subd. (b).)

The

section "authorizes trial courts to impose sanctions to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers."

(Musaelian v. Adams (2009) 45

Cal.4th 512, 514.) A violation of any of these certifications may give rise to

sanctions. (Eichenbaum v. Alon (2003) 106 Cal.App.4th 967, 976.) An objective standard of review applies to sections 128.5 and 128.7. (San Diegans for Open Government v. City of San Diego (2016) 247 Cal.App.4th 1306, 1318; Bockrath v. Aldrich Chemical Co., Inc. (1999) 21 Cal.4th 71, 82.) Whether a claim is meritless or for the sole purpose of harassment must be evaluated by examining whether the factual allegations of the claim had evidentiary support. (580 Folsom Associates v. Prometheus Development Co. (1990) 223 Cal.App.3d 1, 22.) “Code of Civil Procedure section 128.7 imposes a lower threshold for sanctions than is required under Code of Civil Procedure section 128.5. This is because Code of Civil Procedure section 128.7 requires only that the conduct be ‘objectively unreasonable,’ while Code of Civil Procedure section 128.5 also requires ‘a showing of subjective bad faith.’” (Guillemin v. Stein (2002) 104 Cal.App.4th 156, 167.)

#### Sanctions

are unwarranted because the evidence presented indicates a factual dispute rather than litigation brought for improper purposes or without evidentiary support. As explained in the Court’s ruling on Defendants’ demurrer, while Plaintiff’s complaint is facially time-barred, there is a reasonable possibility that it can amend its complaint to allege tolling through willful concealment of the withdrawal motion. Furthermore, both parties dispute whether the address the notice and signed order were sent was the proper address and whether Uwaydah received Defendants’ email notifying him of the pending motion to withdraw. [Rifat Decl. ¶ 4, Exs. M, Q-R; Uwaydah Decl. ¶¶ 6-15.] On the current record, it cannot be said that the suit was brought for an improper purpose or without evidentiary support. Defendants’ motion is therefore denied.

#### Defendants

to give notice.